

Court No. - 1

Case :- WRIT - C No. - 34139 of 2019

Petitioner :- Kunjesh Kumar Dubey

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- In Person

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Sri Kunjesh Kumar Dubey, Advocate, who is appearing in person as petitioner in this petition, Sri Mahboob Ahmad, learned Advocate appearing for respondent nos. 2, 3 and 4, Sri Rahul Malviya, learned Standing Counsel for respondent no. 1 and perused the record.

By means of this petition, the petitioner has raised certain grievance regarding the electricity supply in the area of which he is a resident and also he has complained about the laxity in approach adopted by the officials of the corporation in maintaining the electricity line and the transformer.

He has also prayed for a relief that his electricity connection be restored on record. Along with this petition at page-19 he has annexed a bill of Rs. 28536/- issued by the respondent-corporation, deposit against which he complains, has been refused. He has also prayed for the mutation of his name as the connection stands presently in the name of his father, who has already died.

Per contra, learned counsel for the respondent-corporation has placed instructions obtained by him before the Court which are taken on record.

As per the instruction that have been placed, it transpires that there was unauthorized electricity use in the area to which the petitioner belongs and there is a notice also of the disconnection in respect of the petitioner dated 10.10.2019 besides others who, it is alleged, were involved in unauthorized use of electricity. However, Sri Mahboob Ahmad submits that as per the law, if the bills as generated against the use of electricity are not paid for three consecutive terms then the electricity connection automatically stands disconnected at least forwarding on paper He submits that in this regard also notices were issued to various residents of the area. However, he submits that now new transformer has been installed and electricity line and supply have been maintained. He further submits that the petitioner is also enjoying the electricity supply as the same has not been disconnected. So far as the disconnection on paper is concerned, he submits that if the petitioner pays the bill the same shall also be restored on paper.

He further submits that as far as the petitioner's mutation in respect of the electricity connection is concerned as his father has already died, there is detailed procedure provided for under clause 4.44 of the U.P. Electricity Supply Code, 2005 and if the petitioner has made the application or makes an application, the same shall be dealt with in accordance with law under the Supply Code, 2005.

In view of the above facts and circumstances of the case, this writ petition is disposed of with the direction that in case, if the petitioner pays the bill dated 10.10.2019 which is for Rs. 28536/- within a period of three weeks from today, the petitioner's connection of electricity shall also be restored on paper. However, since it is admitted fact that the electricity connection which the petitioner is enjoying is still continuing in the name of his father, who has already died, his application with regard to the change of name or transfer of connection shall also be considered in accordance with law by the 3rd respondent positively within a period of six weeks from the date of production of a certified copy of this order.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 22.10.2019

Shiraz